



POLICE DEPARTMENT

November 13, 2019

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In the Matter of the Charges and Specifications :

- against - :

Police Officer Aneesah Mitchell :

Tax Registry No. 946697 :

Transit Bureau Anti-Terrorism Unit :

Case No.

2018-19783

-----X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Penny Bluford-Garrett, Esq.
Department Advocate's Office
One Police Plaza
New York, NY 10038

For the Respondent: John Tynan, Esq.
Worth, Longworth & London, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE JAMES P. O'NEILL
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Said Police Officer Aneesah Mitchell, while assigned to Transit Bureau Anti-Terrorism, on or about and between December 1, 2017 and May 1, 2018, did knowingly associate with a person or organization reasonably believed to be engaged in, likely to engage in or to have engaged in criminal activities.

P.G. 203-10, Page 1, Paragraph 2C PUBLIC CONTACT-PROHIBITED
CONDUCT

2. Said Police Officer Aneesah Mitchell, while assigned to Transit Bureau Anti-Terrorism, on or about and between February 2, 2017 and April 27, 2018, conducted numerous unofficial inquiries in the Department Computer System.

P.G. 219-14, Page 1, Paragraph 2 COMPUTERS

3. Said Police Officer Aneesah Mitchell, while assigned to Transit Bureau Anti-Terrorism, on or about and between January 3, 2018 and January 6, 2018, engaged in conduct prejudicial to the good order and efficiency of the Department, to wit: said officer contacted Katori Anderson via the telephone and stated in sum and substance, "I am going to post out there where you live and come there when you're sleep, I have a gun, I know where you work." (*As amended*)

P.G. 203-10, Page 1, Paragraph 5 PUBLIC-CONTACT- PROHIBITED
CONDUCT

4. Said Police Officer Aneesah Mitchell, while assigned to Transit Bureau Anti-Terrorism, on or about July 17, 2018, failed to comply with a lawful order to cease contact with Javiarre Watkins. (*As amended*)

P.G. 203-03, Page 1, Paragraph 2 COMPLIANCE WITH ORDERS

5. Said Police Officer Aneesah Mitchell, while assigned to Transit Bureau Anti-Terrorism, on or about May 15, 2018 and November 30, 2018, made false and misleading statements during an official Department interview when she repeatedly denied contacting an individual identity known to the Department, despite telephone records to the contrary.

P.G. 203-08, Page 1, Paragraph 1 MAKING FALSE STATEMENTS
P.G. 203-10, Page 1, Paragraph 5 PUBLIC CONTACT-PROHIBITED
CONDUCT

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on September 19 and October 7, 2019. Respondent, through her counsel, entered a plea of Not Guilty to the subject charges. The Department called Katori Anderson, Javiarre Watkins, and Detective Janielle Trotman as witnesses. Respondent testified on her own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having carefully reviewed all the evidence in this matter, I find as follows:

Specification 1 (association): Guilty

Specification 2 (computer inquiries): Guilty

Specification 3 (threatening call): Guilty

Specification 4 (failure to comply with order): Not Guilty

Specification 5 (false and misleading statements): Guilty

Recommended penalty: thirty (30) vacation days, fifteen (15) suspension days, and one-year dismissal probation.

ANALYSIS

The charges in this case stem from Respondent's association with Javiarre Watkins, with whom she was romantically involved for approximately one year beginning in January 2017. It is alleged that Respondent's association with Watkins was improper, since she had reason to believe that he had engaged in criminal activity. It also is alleged that Respondent made improper computer inquiries regarding Watkins. During the time that Watkins was involved with Respondent, he also had a relationship with Katori Anderson, [REDACTED]. It is alleged that Respondent made threatening remarks to Anderson during a [REDACTED].

telephone conversation in January of 2018. Respondent also is charged with making misleading statements during two Department interviews regarding her phone calls to Anderson.

Katori Anderson testified that she has known Watkins for about 15 years and dated him on and off during that period, though they broke up in 2018. One night around January 3 of that year, Anderson placed a call to Watkins' phone, but Respondent answered. During their conversation, Respondent stated that she was Watkins' girlfriend; Anderson laughed because she never had heard of Respondent. (Tr. 12-14)

According to Anderson, Respondent then called Anderson directly several times between January 3 and January 7 of 2018. They argued regarding which one of them Watkins was with. In one of those conversations, Anderson told Respondent, "Bitch, you can come down here." Respondent stated to Anderson that she was going to "post out in front of (Anderson's) building and come out with [her] gun," while Anderson was asleep. She also told Anderson she knew where she worked. Anderson interpreted this to mean that Respondent would wait outside her building until Anderson emerged; Anderson acknowledged, however, that Respondent did not specifically threaten to shoot her. Anderson testified that at the time of this phone call, Watkins was in the hallway outside her apartment talking with a neighbor. She did not immediately contact the police about Respondent's threat because it was night and she had work, but she did call IAB a few days later. (Tr. 15, 19, 21, 38-42, 46-47)

Javiarre Watkins testified that he briefly dated Respondent, though he could not recall for how long or the exact dates. They frequently spoke on the phone and exchanged text messages. He also acknowledged his relationship with Anderson, though he claimed he was not dating her at the same time he was with Respondent. Watkins denied ever using Respondent's phone to call Anderson. Between January of 2018 and June of 2018, Watkins "maybe" ran into Respondent one time in Manhattan, and talked with her twice. (Tr. 49-50, 52, 56)

Watkins confirmed that he was [REDACTED]

[REDACTED]. He called Respondent after his arrest because he was supposed to see her that day.

Respondent posted his bail (Dept. Ex. 2). [REDACTED]

[REDACTED]. (Tr. 50-53, 56)

[REDACTED]

[REDACTED]

[REDACTED]

Detective Janielle Trotman of IAB testified that on January 7, 2018, Anderson made a complaint to IAB that she was receiving harassing phone calls from Respondent. As part of Detective Trotman's investigation, she did a criminal background check on Watkins and determined that [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

(Tr. 76, 84-85, 110)

Additionally, Detective Trotman conducted an audit to determine whether Respondent had conducted any searches of Watkins with her Department phone or computer. The audit showed that there were multiple such searches, beginning with a phone search on February 2, 2017 that revealed Watkins' [REDACTED]. A list of these inquiries was admitted into evidence (Dept. Ex. 3). (Tr. 75-83, 119-21)

Detective Trotman initiated surveillance of Respondent and Watkins. She testified that on March 17, 2018 she observed Watkins exit Respondent's home and drive off in her vehicle;

Detective Trotman took photographs during that surveillance (Dept. Ex. 5A-5D). At the first Department interview of Respondent on May 15, 2018, Detective Trotman instructed Respondent not to associate herself with Watkins; the detective did not, however, specify that Respondent should not exchange phone calls or texts with Watkins. After that first interview, Detective Trotman continued to conduct surveillance, and made no additional observations of Respondent and Watkins being together. (Tr. 100-04, 112-14, 122-23)

According to telephone records compiled by Detective Trotman (Dept. Ex. 4)¹, in the period between January 2018 and July 2018, there were 378 calls placed, and 2,648 texts sent, from Respondent's phone to Watkins' phone. During that same time-frame, there were 191 calls made, and 1,465 texts sent, from Watkins to Respondent. Detective Trotman testified that from her review of the records, there was only one communication between the parties after the first Department interview: a call placed from Respondent's phone to Watkins' phone on July 17, 2018. (Tr. 98-99, 122-23)

Additional phone records showed that during the five-day period beginning on January 3, 2018, there were multiple calls made from Respondent's cell phone to Anderson's cell phone and house phone (Dept. Ex. 1). Detective Trotman testified that at both the May 15 Department interview and November 30, 2018 interview, Respondent repeatedly denied that she made the threatening remarks to Anderson, or that she ever even called Anderson; a list of the specific portions of the interviews where Respondent made those statements was introduced into evidence (Dept. Ex. 6C). A recording of the two interviews, and the accompanying transcripts, were introduced as well (Dept. Ex. 6, 6A, 6B). (Tr. 87-88, 106-08, 118)

¹ The report submitted into evidence, a summary of the calls and texts made during that period, was replete with imprecision, which was corrected orally on the record.

Respondent testified that she became romantically involved with Watkins in January of 2017, and that their relationship ended in December of that same year. They continued to communicate for several months after that, and occasionally had sexual relations, but she ceased seeing him after May 15, 2018. Respondent admitted that she did run a computer background check on Watkins, though she could not recall the exact dates when that occurred nor her reason for doing so. Respondent stated that sometime in 2017 Watkins had informed her that he had prior arrests, but he told her they were just "tickets, driving stuff, nothing criminal." In April of 2018, after they already had stopped dating, [REDACTED]

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At her May 15, 2018 interview, Respondent was told not to “associate” with Watkins. Respondent testified that she understood that to mean “no hanging out, no going places where he would be, physically being with him.” (Tr. 132-33, 147)

According to Respondent, the first time she ever saw Anderson was when she appeared at this hearing as a witness. Respondent denied making any phone calls to Anderson, including the alleged calls in January of 2018. Respondent insisted that she did not threaten Anderson, and claimed that the "post out" expression that she allegedly used in one of the phone calls was not one with which she was even familiar. (Tr. 127, 134-36, 144, 151-52)

The specifications will be considered out of order.

Specification 3 charges Respondent with making a threatening telephone call to Anderson in January of 2018, and Specification 5 charges Respondent with making false and misleading statements during her two Department interviews when she denied that she ever

contacted Anderson. Anderson testified that between January 3 and January 7, 2018, Respondent called her multiple times. In one of those calls, Respondent stated to Anderson that she was going to "post out in front of (Anderson's) building and come out with [her] gun," while Anderson was asleep. She also told Anderson she knew where she worked. During both of her Department interviews, and during her trial testimony, Respondent denied making those statements to Anderson, claiming that she never even spoke with Anderson.

On the one hand, when she testified as a witness at this trial, Anderson came across as someone who maintained a strong antagonism toward Respondent. Anderson appeared to view Respondent as a rival, and she seemed upset and angry during several of her responses. Anderson's answers were occasionally non-responsive to the questions being asked. As such, in deciding whether to credit her account, it was important to consider whether there was any credible evidence to corroborate Anderson's testimony. I find that there was such corroboration.

The principal corroboration that the conversation did occur comes from the phone records (Dept. Ex. 1). Those records show approximately a dozen calls being placed from Respondent's phone to Anderson's during the time period in question. Respondent suggested that perhaps Watkins used her phone to place the calls, but that explanation is not plausible; Watkins specifically denied using Respondent's phone to call Anderson. Moreover, there was credible evidence from one of the calls that refutes the suggestion that it was Watkins using Respondent's phone: Anderson testified that Watkins was in the hallway outside her apartment when Respondent made the threatening phone call, so he could not have been the one that placed that call. Additionally, Anderson made a complaint about the calls to IAB on January 7, 2018, which reinforces the validity of her complaint. The specificity with which Anderson described the threatening call had the ring of truth to it as well.

After considering the totality of the evidence, I reject Respondent's self-serving claim that she never called Anderson. Rather, the credible evidence supports Anderson's account that several phone calls were made, including the threatening call. Moreover, Respondent's answers to the questions put to her during the two Department interviews were more than just general denials of guilt; not only did Respondent deny that she threatened Anderson, she also repeatedly stated that she never even called or spoke with her, a narrative completely at odds with the credible evidence. Accordingly, I find Respondent guilty of Specifications 3 and 5.

Specification 2 charges Respondent with conducting numerous unofficial inquiries in the Department computer system. Section 219-14 of the Patrol Guide limits the use of Department computer systems to "make only official inquiries, which relate to official business of the Department." Respondent essentially admitted her guilt on this count, acknowledging that she did run background checks on Watkins, but could not recall the specific dates. The records from the audit conducted by Detective Trotman (Dept. Ex. 3) confirm that multiple inquiries were conducted from Respondent's phone and computer: a phone search of Watkins was made on February 2, 2017, and computer searches of Watkins were conducted on February 9, 2017 and April 26 and April 27 of 2018, the time when Watkins was picked up on the warrant. No credible evidence was presented suggesting anyone else would have a reason to use Respondent's username to do a background check on Watkins. As such, the record has established that Respondent did conduct such inquiries, and I find her guilty of Specification 2.

Specification 1 charges Respondent with knowingly associating with a person reasonably believed to have engaged in criminal activities. Section 203-10 (2)(c) of the Patrol Guide prohibits an MOS from "knowingly associat(ing) with any person reasonably believed to be engaged in, likely to engage in, or to have engaged in criminal activities." By her own admission, Respondent was involved in a romantic relationship with Watkins for approximately

one year beginning in January of 2017. Respondent also conceded that she did a computer background check on Watkins, and Detective Trotman's audit (Dept. Ex. 3) confirmed that multiple such checks were done. Watkins had told Respondent that he had prior arrests, though he described them as just "tickets." [REDACTED]

On the one hand, the background checks into Watkins, [REDACTED] did not conclusively establish that he had engaged in criminal activity. But more problematic is Respondent's decision to assist [REDACTED] Watkins [REDACTED]

[REDACTED]. As counsel conceded, [REDACTED] could be construed as someone you should have known was reasonably involved in some type of criminality [REDACTED]. I agree with that assessment, and find Respondent guilty of Specification 1.

Specification 4 charges Respondent with failing to comply with a lawful order to cease contact with Javiarre Watkins. It is undisputed that during her first Department interview on May 15, 2018, Respondent was instructed not to associate with Watkins. Specifically, Respondent was told, "From this day on, you are no longer to associate yourself with Javiarre Watkins." (Dept. Ex. 6A at 23) Counsel for Respondent notes that Respondent was directed not to "associate" with Watkins, but not specifically told that she needed to refrain from texting Watkins or having any telephone contact with him whatsoever.

Detective Trotman testified that her review of the phone records indicated that a call was placed from Respondent's phone to Watkins' phone on July 17, 2018, in violation of the directive. However, Respondent explained that this minimal phone contact had nothing to do with Watkins himself; Respondent's only purpose was encouraging Watkins' [REDACTED], and no credible evidence was presented suggesting otherwise. Counsel for Respondent

correctly points out that the records otherwise revealed no further phone contact between the parties after the May 15, 2018 Department interview, this coming on the heels of a five-month period where hundreds of phone calls and thousands of texts were exchanged between the parties. Further, counsel notes that during the additional surveillance conducted by Detective Trotman after May 15, she did not observe them together.

It is important that this charge be considered in the context of what is fair and proportional under the circumstances. Taking into account the nature of the limited contact, and the lack of specificity in the direction Respondent received at the first Department interview, I am not persuaded by a preponderance of the credible evidence that under these specific facts Respondent committed misconduct here. Accordingly, I find respondent not guilty of Specification 4.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Educ., 34 N.Y.2d 222, 240 (1974). Respondent was appointed to the Department on July 8, 2008. Information from her personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum. Respondent has no disciplinary record.

The Department Advocate recommends that Respondent forfeit thirty (30) vacation days, fifteen (15) suspension days, and be placed on one-year dismissal probation. Counsel for Respondent argues that the forfeiture of twenty (20) vacation days is adequate to address the misconduct in this case. Indeed, if the only guilty findings here were for the criminal association and wrongful computer inquiries, that suggestion would be reasonable.

However, Respondent also has been found guilty of more serious charges, for making a threatening phone call to Katori Anderson, and then making false and misleading statements during two separate Department interviews. Not only did Respondent deny threatening Anderson, she also expanded on that denial, creating a false narrative about her interactions with Anderson. Despite a preponderance of the credible evidence to the contrary, including phone records, Respondent falsely claimed that she never even called or spoke with Anderson. By persisting in this falsehood, Respondent's misconduct is significantly more troubling, and the higher penalty requested by the Department Advocate is warranted.

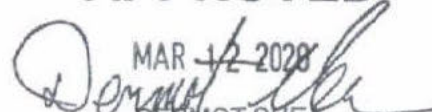
Taking into account the totality of the circumstances and issues in this matter, I recommend that Respondent forfeit thirty (30) vacation days, that she be suspended fifteen (15) days without pay, and that she be DISMISSED from the New York City Police Department, but that her dismissal be held in abeyance for a period of one (1) year pursuant to Section 14-115 (d) of the Administrative Code, during which time she remains on the force at the Police Commissioner's discretion and may be terminated at any time without further proceedings.

Respectfully submitted,



Jeff S. Adler
Assistant Deputy Commissioner Trials

APPROVED



MAR 12 2020
DERMOT SHEA
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER ANEESAH MITCHELL
TAX REGISTRY NO. 946697
DISCIPLINARY CASE NO. 2018-19783

Respondent was appointed to the Department as a Police Officer on July 8, 2008.

On her last three annual performance evaluations, Respondent received 4.0 overall ratings of "Highly Competent" in 2014, 2015 and 2016. She has been awarded one medal for Excellent Police Duty. [REDACTED]

Respondent has no formal disciplinary history. In connection with the instant Charges and Specifications, she was placed on Level 1 Discipline Monitoring on March 18, 2019. Monitoring remains ongoing.

For your consideration.

Jeff S. Adler
Assistant Deputy Commissioner Trials